

PROJECT SPARK

TERMS OF SERVICE, CONFIDENTIALITY, AND INTELLECTUAL PROPERTY AGREEMENT

Effective Date: _____

This Terms of Service, Confidentiality, and Intellectual Property Agreement (“Agreement”) is entered into by and between Kahl Shanahan, owner and operator of Project Spark (“Company,” “Project Spark,” “we,” “our,” or “us”), and the user, purchaser, member, or participant (“User,” “Member,” or “you”).

By purchasing, accessing, viewing, or participating in Project Spark, including but not limited to any website, portal, Discord server, livestream, video, educational material, downloadable resource, indicator, strategy discussion, mentorship session, or digital content provided by Project Spark, you agree to be legally bound by this Agreement.

1. PURPOSE

Project Spark provides proprietary educational content, trading mentorship, market analysis, strategies, training systems, videos, documents, indicators, community access, and related intellectual property intended solely for the personal educational use of authorized members.

All materials provided by Project Spark are confidential and proprietary.

2. CONFIDENTIAL INFORMATION

“Confidential Information” includes, but is not limited to:

- Trading strategies
- Market analysis
- Educational videos
- Livestreams
- Mentorship sessions
- Indicators
- PDFs and downloadable resources
- Website content
- Discord communications
- Private community discussions
- Business methods
- Branding
- Proprietary teaching systems
- Member-only content
- Software or tools

- Any information not publicly released by Project Spark

Confidential Information may exist in written, visual, audio, recorded, digital, verbal, or electronic form.

3. LIMITED LICENSE

Project Spark grants Users a limited, revocable, non-transferable, non-exclusive license to access the content solely for personal educational purposes.

Users do not obtain ownership rights to any content, systems, methods, branding, or intellectual property.

4. PROHIBITED CONDUCT

Users expressly agree NOT to:

- Record any content
- Screen record livestreams or videos
- Take screenshots of protected materials
- Redistribute content
- Share login credentials
- Share accounts
- Upload materials elsewhere
- Repost content on social media
- Sell or resell any Project Spark content
- Copy or reproduce materials
- Leak information publicly or privately
- Share indicators, files, or proprietary tools
- Use Project Spark content to train artificial intelligence models or systems
- Reverse engineer any protected systems
- Circumvent security measures or encryption

Any unauthorized disclosure or use constitutes a material breach of this Agreement.

5. INTELLECTUAL PROPERTY OWNERSHIP

All Project Spark materials are and shall remain the sole intellectual property of Kahl Shanahan and/or Project Spark.

This includes all copyrights, trademarks, trade secrets, proprietary systems, educational methods, branding, designs, documents, videos, recordings, indicators, and digital assets.

No ownership rights are transferred to Users under any circumstance.

6. COPYRIGHT AND DMCA ENFORCEMENT

Unauthorized copying, distribution, reposting, or reproduction of Project Spark content may constitute copyright infringement under United States law.

Project Spark reserves the right to pursue:

- DMCA takedown notices
 - Copyright infringement claims
 - Civil litigation
 - Injunctive relief
 - Financial damages
 - Account termination
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7. LIQUIDATED DAMAGES

User acknowledges that unauthorized disclosure, redistribution, reproduction, or leaking of Project Spark confidential materials would cause substantial and irreparable harm that may be difficult to calculate precisely.

Accordingly, the User agrees that Project Spark shall be entitled to liquidated damages in the amount of Seventy-Five Thousand United States Dollars (USD \$75,000) per verified violation or unauthorized disclosure event, in addition to:

- Injunctive relief
- Attorney's fees
- Arbitration costs
- DMCA enforcement remedies
- Any additional actual damages permitted by law

The parties agree that this amount represents a reasonable estimate of damages and is not intended as a penalty.

8. INJUNCTIVE RELIEF

User acknowledges that breaches involving unauthorized disclosure or misuse of confidential information may cause irreparable harm.

Project Spark shall therefore be entitled to seek immediate temporary, preliminary, or permanent injunctive relief in any court of competent jurisdiction without the requirement of posting bond.

9. ARBITRATION AGREEMENT

Except for matters involving intellectual property infringement, confidential information leaks, copyright violations, or requests for injunctive relief, all disputes arising from or relating to this Agreement shall be resolved exclusively through binding arbitration in the State of Iowa under the rules of the American Arbitration Association.

The parties waive any right to a jury trial or participation in class-action litigation.

10. GOVERNING LAW

This Agreement shall be governed by and construed in accordance with the laws of the State of Iowa, without regard to conflict of law principles.

11. TERMINATION

Project Spark reserves the right to suspend or terminate access immediately for any suspected violation of this Agreement.

Termination does not waive Project Spark's right to pursue legal remedies.

12. NO FINANCIAL ADVICE

Project Spark provides educational content only.

Nothing provided by Project Spark constitutes:

- Financial advice
- Investment advice
- Legal advice
- Tax advice
- Guarantees of profit or performance

Trading involves substantial risk, and past performance does not guarantee future results.

13. ELECTRONIC ACCEPTANCE

By checking any acceptance box, purchasing access, accessing the platform, or using Project Spark services, User acknowledges that they have read, understood, and agreed to this Agreement electronically.

Electronic acceptance shall carry the same legal effect as a physical signature.

14. SEVERABILITY

If any provision of this Agreement is found unenforceable, the remaining provisions shall remain in full force and effect.

15. ENTIRE AGREEMENT

This Agreement constitutes the entire understanding between the parties and supersedes all prior agreements, communications, or understandings relating to the subject matter herein.

PROJECT SPARK

Owner/Operator:

Kahl Shanahan

Signature: _kahl shanahan_____

Date: 5/25/2026

USER

Name: _____

Signature: _____

Date: _____